

1 Q. Who was this man?

2 A. I believe it was Scott Moore.

3 Q. Why do you believe it was Scott Moore?

4 A. Because the next morning there was another

5 incident in another room, and when we compared stories, it

6 seemed like the exact same thing.

7 Q. And you said the next morning something happened.

8 You found out something had happened in a separate room?

9 A. Yes.

10 Q. Who did you speak with?

11 A. I spoke with Jordan Galbraith.

12 Q. Okay. Any other reason you thought it was the

13 defendant, Scott Moore?

14 A. It was about his height, and I know that in the

15 other room he had been identified and so I just assumed.

16 Q. Okay. Did you report what had happened to you to

17 any of the staff at the camp or the church?

18 A. When we tried to report it, our initial meeting

19 broke down, and then we ended up talking with the camp leader,

20 Lee Jost.

21 Q. Okay. Was Mr. Jost supportive of you?

22 A. Absolutely not.

23 Q. Absolutely what?

24 A. Not.

25 Q. And did Lee Jost address the issue later that day?

1 A. He said something in the main worship room to the
2 effect that we shouldn't lie and tell bad stories about
3 people.
4 Q. So he called you out in front of the group?
5 A. Basically, yes.
6 Q. Did Mr. Jost contact your parents from the camp?
7 A. Yes, ma'am.
8 Q. Did you speak with your parents from the camp?
9 A. Yes.
10 Q. And when you were speaking with your parents on
11 the phone, where was Mr. Jost?
12 A. Standing right in front of me listening.
13 Q. Did you feel comfortable about that?
14 A. Absolutely not.
15 Q. Did you feel like you had the support of the
16 church on this issue?
17 A. No.
18 Q. Did you go back to the camp the next year?
19 A. No, ma'am.
20 Q. Now, a year later in November of 2006, do you
21 remember talking to law enforcement about what had happened to
22 you the year prior?
23 A. Yes, ma'am.
24 Q. Did you make a written statement at that time?
25 A. Yes, I did.

1 Q. Have you had an opportunity to view that
2 statement?

3 A. Yes.

4 (Whereupon, State's Exhibit No. 6 was
5 marked by the reporter for identification.)

6 Q. (By Ms. Jones) When you made the written statement
7 in November 2006, were the events fresher in your mind then?

8 A. Yes.

9 Q. Fresher than they are today?

10 A. Yes.

11 Q. I'm going to show you what's been marked as
12 State's Exhibit No. 6. Do you recognize that?

13 A. Yes.

14 Q. What do you recognize State's 6 to be?

15 A. That is my written statement from 2006.

16 Q. Is that your signature on the statement?

17 A. Yes.

18 Q. Is that your handwriting?

19 A. Yes, ma'am.

20 Q. Did anyone tell you what to write in this
21 statement?

22 A. No, they did not.

23 Q. Did you have any help writing it?

24 A. No.

25 Q. Did anyone tell you what to say on what had

1 happened to you?

2 A. No.

3 MS. JONES: Your Honor, I move to admit
4 State's 6.

5 MR. REGAN: Can we see you for a moment,
6 Judge?

7 THE COURT: Yes.

8 (Whereupon, the following proceedings were
9 held at the bench outside the presence of the jury.)

10 MR. REGAN: Judge, would you please note my
11 objection to the admission of this exhibit on the grounds it
12 is cumulative to the testimony of this witness and is
13 improperly bolstering of this witness before being
14 cross-examined.

15 THE COURT: Yes. I am noting your
16 objection. It is overruled.

17 THE COURT: State's 6 is admitted.

18 (Whereupon, State's Exhibit No. 6 was
19 admitted into evidence.)

20 Q. (By Ms. Jones) Mr. Heslop, do you know Nick Koch?

21 A. No, ma'am.

22 Q. Have you ever spoken to anyone named Nick Koch?

23 A. Not that I know of.

24 MS. JONES: Thank you. I have no further
25 questions.

1 THE COURT: Cross-examination?

2 MR. REGAN: Thank you, Judge.

3 CROSS-EXAMINATION

4 BY MR. REGAN:

5 Q. Good morning, Kyle.

6 A. Good morning.

7 Q. Would it be fair to say going back to that moment
8 long ago in the room, you were not sure at the time who the
9 individual was in the room; right?

10 A. Yes.

11 Q. You didn't know who that was, did you?

12 A. It fit the profile.

13 Q. You didn't know at the time, to be fair?

14 A. Correct.

15 Q. It was only after talking to your buddy, Jordan
16 Galbraith, the next day that you deduced that the guy you saw
17 must have been Scott Moore?

18 A. Yes.

19 Q. Isn't it true at the time Jordan Galbraith told
20 you he wasn't sure who had been in the room?

21 A. Actually, a roommate of his did know.

22 Q. That wasn't my question. Jordan Galbraith told
23 you that he wasn't sure who was in the room?

24 A. When he told me, he was sure.

25 Q. Didn't he tell you he wasn't sure at the time he

1 told you?
2 A. I don't know.
3 Q. Now, you are how tall?
4 A. Six feet.
5 Q. Scott Moore is 6'1"?
6 A. I don't know.
7 Q. In those days Scott weighed about 260?
8 A. Yes.
9 Q. What did you weight in those days?
10 A. Like 150.
11 Q. So Scott outweighed you by 110 pounds; true?
12 A. Yes.
13 Q. How tall were you back then?
14 A. I was 5'8", 5'9".
15 Q. So Scott was four or five inches taller than you?
16 A. Yes.
17 Q. And you knew who he was from being your scout
18 leader -- sorry, camp leader through the church?
19 A. Yes.
20 Q. When all that happened, there was a church
21 investigation; true?
22 A. Yes.
23 Q. And you were interviewed by certain folks through
24 the church?
25 A. Yes.

1 Q. And your mom and dad, Mike and Jane, that's their
2 names?

3 A. Yes.

4 Q. And they participated in the interviews and
5 investigation?

6 A. Yes.

7 Q. You cooperated to the best of your ability?

8 A. Yes.

9 Q. You made a complaint about how you were treated by
10 Lee Jost; right?

11 A. Yes.

12 Q. However, were you also interviewed by Randy Meyer
13 and Nancy Brown; right?

14 A. Yes.

15 Q. You were told and encouraged by the church folks
16 to tell the truth as best you recall?

17 A. Yes.

18 Q. And not discouraging you telling whatever your
19 version of it was; right?

20 A. Right.

21 Q. At the time you told the best you could of what
22 happened?

23 A. Yes.

24 Q. And didn't they tell you they were concerned about
25 the allegations and wanted to get to the bottom?

1 A. Yes.

2 Q. And they wanted to treat you fairly in this

3 investigation?

4 A. Yes.

5 Q. Did you tell your mom and dad you were not sure

6 what happened?

7 A. I don't remember.

8 Q. Is it possible that's what you told them and you

9 don't remember because of the passage of time?

10 A. Yes, sir.

11 Q. Isn't it true you told your mom and dad you could

12 not identify anyone that was in the room that night?

13 A. Yes.

14 Q. Isn't it true you were in a good mood that night?

15 A. No.

16 Q. I mean before all this happened?

17 A. Yes.

18 Q. And did you tell your mom and dad that you were

19 doing well and had forgotten about that night?

20 A. In what time frame?

21 Q. That's what you told your folks back in 2005?

22 A. No.

23 Q. You were interviewed by Lee Jost; do you remember

24 that?

25 A. Yes.

1 Q. Do you remember telling Mr. Jost quote, "The
2 person was my height, I am 5'8"?

3 A. Yes.

4 Q. Did you say the person was built the same as you?

5 A. I don't remember saying that.

6 Q. About 150 pounds. Would you agree with me that
7 Mr. Moore was not your height and not your weight; correct?

8 A. Yes.

9 Q. Certainly not a similar build as you in those
10 days; true?

11 A. True.

12 Q. And you said that this fellow was wearing glasses;
13 true?

14 A. I believe so.

15 Q. Mr. Moore doesn't have glasses on today, does he;
16 right?

17 A. Not today.

18 Q. Did he have glasses on back then at camp?

19 A. I don't remember. I don't know.

20 Q. Are you aware that Mr. Moore had no glasses at
21 camp that weekend?

22 A. I don't know.

23 Q. Now, this is an important detail, Kyle. Isn't it
24 true when all this was fresh in your mind, you told your mom
25 and dad that the guy in the room had a "Night Stalker" T-shirt

1 on?

2 A. I never told my parents that, no.

3 Q. Is that what you told the church investigators?

4 A. Only because they asked me.

5 Q. There's nothing wrong with saying this, if that's

6 what you said.

7 A. Yes.

8 Q. You're not in trouble for saying it; right?

9 A. Yes.

10 Q. And that's what you said back when this was close

11 in time?

12 A. Yes.

13 Q. And that's what you said back when this was fresh

14 in your mind; correct?

15 A. Yes.

16 Q. Are you aware that by all accounts Mr. Moore has

17 never owned such a "Night Stalker" shirt?

18 A. No.

19 Q. And were you as sure then that the guy had a

20 "Night Stalker" shirt on as you were about the other details

21 of that night; true?

22 A. No.

23 Q. Did you need glasses in those days?

24 A. No.

25 Q. How about Galbraith, did he wear glasses in those

1 days?

2 A. I don't remember.

3 Q. The next day, did you compare stories with Mr.
4 Galbraith and some of the other kids about what you had seen
5 and heard in your room?

6 A. Yes.

7 Q. And did they tell you what they had seen and heard
8 in their rooms?

9 A. Yes.

10 Q. And as recently as this year -- I'm sorry -- late
11 last year, were you interviewed on the telephone by Overland
12 Park Police Detective Fizer?

13 A. Yes.

14 Q. And did he tell you that he wanted to talk with
15 you and get you ready for this case?

16 A. Yes.

17 Q. Get you ready for trial?

18 A. Yes.

19 Q. And do you remember telling him, "I thought he was
20 wearing glasses"?

21 A. Yes.

22 Q. Do you remember saying he turned a flashlight on?

23 A. Yes.

24 Q. And you told Detective Fizer that whoever this was
25 in your room had no contact with you; right?

1 A. Correct.

2 Q. Whatever happened, you didn't notice anybody

3 taking pictures with a flash camera of boys or yourself; true?

4 A. No.

5 Q. And didn't you tell Detective Fizer quite recently

6 in his telephone interview with you that you were never

7 touched inappropriately by whoever this person was?

8 A. Yes.

9 Q. And you told him that because it's true; correct?

10 A. Yes.

11 MR. REGAN: Your witness.

12 THE COURT: Any redirect?

13 MS. JONES: No, Your Honor.

14 THE COURT: Counsel, may this witness be

15 excused?

16 MS. JONES: Yes.

17 MR. REGAN: Yes.

18 THE COURT: Thank you for your testimony.

19 You may step down, and you may be excused. State's next

20 witness.

21 MS. JONES: The State calls Jordan

22 Galbraith.

23

24

25

1 JORDAN GALBRAITH,
2 having been duly sworn to tell the truth, the whole truth and
3 nothing but the truth, testified as follows:

4 DIRECT EXAMINATION

5 BY MS. JONES:

6 Q. Please state your name?

7 A. Jordan Galbraith.

8 Q. How old are you now?

9 A. I am 22.

10 Q. What's your date of birth?

11 A. It's 9/20/90.

12 Q. Mr. Galbraith, do you know Scott Moore?

13 A. Yes, I do.

14 Q. When is the last time you saw Mr. Moore?

15 A. That would be whatever year the incident happened.

16 Q. So in November of 2005, would you agree with me?

17 A. Yes.

18 Q. Do you see Mr. Moore in the courtroom today?

19 A. I do.

20 Q. Now, Mr. Galbraith, is it Galbraith? Tell me how
21 to pronounce it, Galbraith?

22 A. Galbraith.

23 Q. I'm close. The camp you went to in November 2005
24 was a weekend camp, Friday through Sunday?

25 A. Yes, it was.

1 Q. What was the defendant, Scott Moore's involvement
2 in that camp?

3 A. He was one of our two cabin leaders.

4 Q. Was he sleeping in your actual room?

5 A. No, he was not.

6 Q. Do you recall if Kyle Heslop was in that cabin?

7 A. Yes. He was in a different room, same cabin.

8 Q. Different room than you, but the same cabin?

9 A. Yes.

10 Q. Okay. The first night of the camp, did something
11 happen in the middle of the night that woke you up?

12 MR. REGAN: Can we approach, please?

13 THE COURT: You may.

14 (Whereupon, the following proceedings were
15 held at the bench outside the presence of the jury.)

16 MR. REGAN: Judge, would you please note my
17 continuing objection to this, the 60-455 evidence through this
18 witness. It's my position that the prejudicial value of this
19 evidence greatly outweighs the probative value.

20 THE COURT: Yes, I'll note your objection
21 for the record. Overruled.

22 (Whereupon, the following proceedings were
23 held away from the bench in the presence of the jury.)

24 Q. (By Ms. Jones) All right. So the first night of
25 the camp something happened in the middle of the night that

1 woke you up?

2 A. Yes.

3 Q. Now, this is November 2005 that you're at this
4 camp, and I know we're here Tuesday, January 13th. So it's
5 been seven-plus years. Tell me what you recall happening. As
6 you sit on the witness stand, what you recall happening back
7 in November 2005?

8 A. Well, I awoke in the middle of the night, and I
9 felt kind of a pressure. I felt like a hand on my private
10 area. And as soon as I began to stir, I noticed someone rise
11 and leave the room very quickly.

12 Q. Okay. I'm going to stop you there for a second
13 because we're going to take this in pieces. You had some
14 pressure in your private area. You said it felt like a hand?

15 A. Yes.

16 Q. So I'm going to have to ask you some specific
17 questions.

18 First of all, do you recall what you were wearing?

19 A. I was wearing boxers, gym shorts and a T-shirt.

20 Q. Okay. And when you say it felt like a hand, what
21 part of your body was the hand touching?

22 A. On my penis.

23 Q. Was this what I would term as skin-to-skin
24 contact?

25 A. Yes.

1 Q. So the skin of the person's hand was touching the
2 skin of your penis?

3 A. Yes.

4 Q. Okay. So go on from there, what happened next?

5 A. When I came out of the sleep, I noticed that my
6 penis had been buried up into the waistband of my boxers,
7 which for a very good reason I found very odd. So I had a
8 little trouble getting back to sleep. So I rolled over on my
9 side, and a few minutes later someone, a large man, came back
10 into the room and squatted in front of the bunk across from
11 me, and he had a flashlight and shined -- first shined it on
12 my friend Bob's face, and then on his sleeping bag, and back
13 to his face. And when he didn't stir, he turned off the
14 flashlight and put it in his back pocket and began reaching
15 towards him. Which at that point, I called out, "Scott," and
16 the person rose up and immediately left the room like I had
17 seen when I first awoke.

18 At that point I woke up the other three guys that were in
19 my room and told them what happened. Probably ten minutes
20 later, Scott came in the room and said that one of us had been
21 screaming in our sleep, which I knew wasn't the case because I
22 was still awake. Then nothing really happened for the rest of
23 that night. And then the next morning when I talked to Kyle,
24 he told me that a similar incident had happened to him.

25 Q. Okay. Had anyone been shouting in your room or

1 screaming?

2 A. No.

3 Q. Did you report this to the camp staff or church

4 staff?

5 A. Yes, I did.

6 Q. Did you speak to Lee Jost about it?

7 A. I did. I did.

8 Q. Do you recall Mr. Jost speaking to the entire

9 group that night?

10 A. Yes.

11 Q. What was the general subject of that?

12 A. Essentially he told us that we were trying to

13 slander Scott's name and trying to make him look bad, and

14 basically told us that we were messing with his life, and

15 there could be serious repercussions for that. And besides

16 that, he really didn't take any action to look into this

17 further.

18 Q. Okay. Had you had any issue with Scott Moore at

19 the camp?

20 A. No.

21 Q. Do you recall whether or not you wore a T-shirt

22 that said something to the effect of "Got Semen"?

23 A. No.

24 Q. Do you recall having any incidents with any of the

25 other boys at the camp?

1 A. No.

2 Q. Do you recall having any altercation or
3 discussion, negative discussion, with the defendant Scott
4 Moore?

5 A. No.

6 Q. Do you recall Mark Childress being at the camp as
7 well, Dr. Childress?

8 A. Yes.

9 Q. Did you ever speak with Dr. Childress about the
10 defendant Scott Moore and his whereabouts the night that this
11 happened?

12 A. Yes.

13 Q. What did Mr. Childress tell you?

14 A. He, along with Austin Childress, his son, had both
15 told me that they had -- that Mark had noticed --

16 MR. REGAN: I believe anything said by
17 young Mr. Childress, he's not available for cross-examination,
18 Dr. Childress will be here, and I have no objection as to what
19 he might say.

20 THE COURT: Are both of those people here?

21 MS. JONES: Mark Childress is, so I can
22 rephrase.

23 THE COURT: Rephrase.

24 Q. (By Ms. Jones) Jordan, if you'll just tell us what
25 Mark Childress told you.

1 A. Okay. Mark approached me and told me that he had
2 noticed that Scott had gotten up and left the room several
3 times that night, and that he had racked it up to him having
4 some sort of intestinal problem, digestive problem, something
5 like that.

6 Q. All right. Jordan, do you know Nick Koch?

7 A. I do not.

8 Q. Have you ever spoken to an individual named Nick
9 Koch?

10 A. Not to my knowledge, no.

11 MS. JONES: Thank you. No further
12 questions.

13 THE COURT: Cross-examination?

14 **CROSS-EXAMINATION**

15 **BY MR. REGAN:**

16 Q. Good morning, Mr. Galbraith.

17 MR. REGAN: May I approach, please?

18 THE COURT: You may.

19 Q. (By Mr. Regan) Let me show you Defendant's Exhibit
20 21. Is this a fair and accurate diagram of the floor plan of
21 the youth cabin layout when all of you were staying there at
22 the time?

23 A. Yes.

24 MR. REGAN: At this time, we offer
25 Defendant's 21.

1 THE COURT: Any objection?

2 MS. JONES: No, Your Honor.

3 THE COURT: Defendant's 21 is admitted.

4 (Whereupon, Defendant's Exhibit No. 21 was
5 admitted into evidence.)

6 Q. (By Mr. Regan) Is it true that this is where the
7 leaders' room was?

8 A. Yes.

9 Q. And the leaders stayed in bed in the leaders'
10 room?

11 A. Yes.

12 Q. And the leaders had their own bathroom; right?

13 A. Yes.

14 Q. And then you boys would stay in the room one, two,
15 three, four?

16 A. Yes.

17 Q. Which one were you in?

18 A. I was in Room 1.

19 Q. Who was in that room with you, please?

20 A. There was Bob Drown, Taylor Joyce and Brandley
21 Thrasher.

22 Q. Two bunk beds up and down?

23 A. Yes.

24 Q. So two sets of two boys?

25 A. Yes.

1 Q. Were you in the top or bottom bunk?

2 A. I was in the bottom bunk.

3 Q. Isn't it true that when Dr. Childress talked to
4 you, he said that Scott had left the leaders' room to go to
5 the bathroom because he was sick that night?

6 A. Yes.

7 Q. All right. He didn't say Scott was out snooping
8 around all these other rooms. Just that Scott was sick, so he
9 had to tend to his needs in the leaders' bathroom?

10 A. He said he had left the room along with the
11 bathroom.

12 Q. Let me show you Defendant's 22. Is this a fair
13 and accurate diagram in a little more primitive nature of the
14 layout of the room in those days?

15 A. Yes.

16 Q. I think this was done by one of the boys or Mr.
17 Jost during the investigation; right?

18 A. Yes.

19 MR. REGAN: At this time, we offer
20 Defendant's 22 into evidence.

21 THE COURT: Any objection?

22 MS. JONES: No.

23 THE COURT: Defendant's 22 is admitted.

24 (Whereupon, Defendant's Exhibit No. 22 was
25 admitted into evidence.)

1 Q. (By Mr. Regan) Sir, does this fairly and
2 accurately display the layout of where you were staying at the
3 camp?

4 A. Yes.

5 Q. Okay. In those days at the camp, did you boys
6 ever play pranks on each other at night and go into each
7 others' rooms, anything like that was going on?

8 A. No.

9 Q. Have you come here freely, or have you been
10 subpoenaed by the State?

11 A. I had been subpoenaed.

12 Q. Do you know Nick Koch?

13 A. No.

14 Q. Do you know his mom, Lori Koch?

15 A. No.

16 Q. Did you discuss these allegations at the church
17 camp with members of the Koch family?

18 A. No.

19 Q. Whatever happened that weekend, it happened at
20 night; right?

21 A. Yes.

22 Q. While you were asleep?

23 A. Yes.

24 Q. In pitch dark rooms?

25 A. No, we had a night light. Every room was required

1 to have a light.

2 Q. Through the fire code or something?

3 A. Yeah, something along those lines.

4 Q. I see you're wearing glasses. What is your vision
5 without glasses?

6 A. They are mostly just for reading.

7 Q. Could you see well at night without glasses in
8 those days?

9 A. Yes.

10 Q. Did you have your glasses on or off while you were
11 sleeping?

12 A. They were off.

13 Q. Isn't it true you could not positively identify
14 who was in your room while this was happening?

15 A. Not by face, but I knew by the build, and when I
16 called out the name, he -- whoever -- he reacted to it.

17 Q. But you could not identify by face who was in your
18 room; correct?

19 A. Correct.

20 Q. And the next day when you talked with everybody,
21 you still couldn't identify by face who had been in your room;
22 correct?

23 A. Correct.

24 Q. At the time, it could have been a fellow camper;
25 correct?

1 A. I could tell they were much too large to be a
2 freshman in high school.

3 Q. Let's talk about that. Once your buddies
4 indicated -- you and Kyle are friends?

5 A. Not per se. He went to a different high school
6 than I did.

7 Q. Kyle in those days was about 5'8" and 160?

8 A. Yes.

9 Q. Scott Moore in those days was 6'1" and 260?

10 A. Okay.

11 Q. True?

12 A. Yes.

13 Q. Scott was a big guy?

14 A. Yes.

15 Q. Much bigger than you guys?

16 A. Yes.

17 Q. And Scott was not similar in build to Kyle at all?

18 A. No.

19 Q. So any allegation that whoever was walking around
20 the room was similar to Kyle in build would be wrong?

21 A. Right.

22 Q. Whatever happened, this visit took place about
23 1:30 in the morning?

24 A. Yes.

25 Q. When Scott was around your room later, that was at

1 six o'clock in the morning?

2 A. Yes.

3 Q. That's when it's time to get up?

4 A. Yes.

5 Q. And there was nothing wrong with Scott or other

6 leaders checking on the room at six o'clock; true?

7 A. Yes.

8 Q. We're here to talk about what happened at 1:30.

9 A. Okay.

10 Q. Did you have a watch on that night?

11 A. I did not.

12 Q. How did you know what time it was?

13 A. After I had awoken, I checked my phone.

14 Q. Was your phone on in the bed with you that night?

15 A. Yes.

16 Q. And when Scott arrived in the doorway at six

17 o'clock, he did identify himself?

18 A. Yes.

19 Q. "It's Scott, let's get up, guys"?

20 A. Yes.

21 Q. You weren't singled out. It was time for everyone

22 to get up?

23 A. Yes.

24 Q. But the 1:30 visitor did run away; true?

25 A. Yes.

1 Q. Was the door to the room that night closed by you?
2 A. No.
3 Q. Was it closed by someone else?
4 A. It had to have been, yes. I don't know if it was
5 a roommate or someone else.
6 Q. Did you hear it initially open when the 1:30
7 visitor came?
8 A. Yes.
9 Q. Did you see it open as well?
10 A. Yes.
11 Q. You certainly didn't see Scott Moore open the
12 door; true?
13 A. Correct.
14 Q. The four of you boys were in this room?
15 A. Yes.
16 Q. That door, Jordan, does it open in or out?
17 A. Into the room.
18 Q. Into the room?
19 A. Yes.
20 Q. Are those rooms really dark at night?
21 A. I mean it's light enough for a night light. It's
22 really a judgment call what you think is dark.
23 Q. Is it noisy in those cabins at night?
24 A. No.
25 Q. Do you recall hearing a humidifier that ran all

1 night?

2 A. No. But I sleep with a fan, so it's really white
3 noise to me.

4 Q. Did you have a fan on you that night?

5 A. No.

6 Q. Did you sleep with a flashlight in your bed?

7 A. No.

8 Q. The next day, did you ask your cabin mates if they
9 had seen anything?

10 A. Yes.

11 Q. Is it true that they had told you they had not?

12 MS. JONES: Objection. Hearsay.

13 THE COURT: Sustained.

14 Q. Well --

15 THE COURT: I sustained the objection.

16 THE WITNESS: Okay.

17 Q. (By Mr. Regan) Were you told by anyone that they
18 had seen anything?

19 MS. JONES: Objection. Hearsay.

20 MR. REGAN: Judge, that's not offered for
21 the truth of the matter asserted. It's just to justify what
22 his actions were. The same as probable cause.

23 THE COURT: Sustained.

24 Q. (By Mr. Regan) There was a big investigation after
25 your allegations; correct?

1 A. Yes.

2 Q. And didn't Scott Moore start that investigation
3 and bring the church in to look at what happened?

4 A. I'm not sure who started it.

5 Q. And your mom and dad met with you and some of your
6 church investigators?

7 A. Yes.

8 Q. And do you remember the church investigators being
9 Nancy Brown and Randy Meyer?

10 A. Yes.

11 Q. And your mom and dad's names are Tom and Kim?

12 A. Yes.

13 Q. Did they accompany you to a number of these
14 interviews?

15 A. Yes.

16 Q. Was it made clear to you that they wanted to get
17 to the bottom of what happened and see what had occurred so
18 the church could rectify the problem if there was one?

19 A. Yes.

20 Q. And are you satisfied that the subsequent
21 investigators were fair to you, kind to you?

22 A. At the time, yes.

23 Q. You complained to the prosecutor about Mr. Jost,
24 but you're not making claims about the others; true?

25 A. Correct.

1 Q. And your mom and dad heard all of your statements
2 that you made through this investigation; true?

3 A. Well, most of it. They left the room for a little
4 portion of the interview.

5 Q. And when all this got talked about, you talked to
6 your mom and dad, you talked to Mr. Jost, you talked to Ms.
7 Meyer, you talked to Ms. Brown, rather Mr. Meyer. At any time
8 in the middle of this, did you talk to law enforcement
9 officers?

10 A. No.

11 Q. Did you talk to a Sunflower House counselor?

12 A. No.

13 Q. And were you told to tell the truth as best as you
14 remembered it?

15 A. Yes.

16 Q. And if you're like most of us, six years ago it
17 was a lot clearer in your head than it is today?

18 A. Yes.

19 Q. So you told the truth as best you can remember?

20 A. Yes.

21 Q. Isn't it true that to the best of your knowledge
22 you told your folks that you're not sure anything had
23 happened?

24 A. Because I was half asleep when I woke up, I said
25 that I couldn't be entirely sure, yes.

1 Q. You told your mom and dad, "I can't be entirely
2 sure anything happened to me." That's what you said back
3 then?

4 A. Correct.

5 Q. Now, prior to all this, didn't you and Scott have
6 some issues regarding a shirt you were wearing to a church
7 service?

8 A. I don't recall.

9 Q. You kids went to church service as part of this
10 camp; correct?

11 A. Yes.

12 Q. Didn't Scott pull you out of line because you had
13 a shirt on. You know the saying on the billboard, "Got Milk?"
14 sitting on the shirt?

15 A. Yes.

16 Q. You had a shirt on when you were on the way to
17 church that said, "Got Semen?" S-E-M-E-N?

18 A. No, I do not recall doing that.

19 Q. Do you own such a shirt?

20 A. No.

21 Q. Ever?

22 A. No.

23 Q. Are you sure about that under oath?

24 A. Yes.

25 Q. Had you been disciplined by Scott for poking

1 another kid in the face with a pencil?

2 A. I don't recall. I don't know why I would have
3 done that.

4 Q. Were you disciplined by Scott Moore for
5 misbehavior at the camp?

6 A. Not that I recall.

7 Q. Were you upset with Scott Moore because you had
8 been disciplined?

9 A. No.

10 Q. Did you refuse to clean up in the camp area when
11 ordered by Scott?

12 A. I don't recall.

13 Q. Is it possible you were and don't remember?

14 A. It is possible, yes.

15 Q. Do you recall sitting out of church service
16 because you had been disciplined by Scott for inappropriate
17 clothing?

18 A. I remember sitting out after the sermon the second
19 night when Lee had, without naming names, basically said that
20 we were sinning for coming forward and talking about what
21 happened the night before. But that's the only night that I
22 sat out of service. I left the service because I was upset.

23 Q. You don't recall being told to sit out of service
24 because of discipline prior to the 1:30 a.m., visitor?

25 A. No.

1 Q. At the end of the investigation was there a big
2 meeting with church personnel and your mom and dad?

3 A. I believe, yes.

4 Q. Are your mom and dad here with you today?

5 A. Yes.

6 Q. Are they in the courtroom behind me?

7 A. Yes.

8 Q. Isn't it true in your presence, your mom and dad
9 said --

10 MS. JONES: Objection. Hearsay.

11 MR. REGAN: I'm not done with my question.

12 THE COURT: Counsel, approach.

13 (Whereupon, the following proceedings were
14 held at the bench outside the presence of the jury.)

15 THE COURT: Okay. Where is this going?

16 MR. REGAN: The question would be: Isn't
17 it true mom and dad said in your presence and you agreed that
18 this is a big misunderstanding. Nothing happened. We're
19 sorry.

20 MS. JONES: It's hearsay not under
21 subpoena. They are not subject to cross. They have been
22 sitting in the courtroom. The witness rule is invoked.

23 MR. REGAN: It would be a defense for me to
24 have them testify. If they have to testify, I'll waive.

25 THE COURT: I'll allow it. Overruled.

1 (Whereupon, the following proceedings were
2 held away from the bench in the presence of the jury.)
3 Q. (By Mr. Regan) Jordan, this last conversation, did
4 you make the comment, "I felt someone was playing a joke on
5 me." Did you say that?
6 A. Yes.
7 Q. You said that because it was true?
8 A. No. I said that because I didn't fully understand
9 what was going on.
10 Q. Didn't you say, "I woke up all three cabin mates,
11 but none believed me"?
12 A. Yes. Because they were all asleep when the
13 incident occurred.
14 Q. Didn't you say, "I left my blanket down to test
15 who came in my room"?
16 A. To try to get further understanding of what
17 happened.
18 Q. Did you say Scott Moore didn't come in until six
19 a.m.?
20 A. Because that was the first time I could positively
21 identify the person.
22 Q. And this was all over, and didn't your mom and dad
23 say, "This seems like a big misunderstanding, we're sorry"?
24 A. What my parents said was not related to me. What
25 they said to the church was not related to me.

1 Q. Didn't they say that in your presence?

2 A. No.

3 Q. You're sure about that?

4 A. Pretty sure. I don't remember them saying that.

5 Q. Was it left with you after talking to your parents
6 after the church investigation was over --

7 A. I'm sorry?

8 Q. Did you understand when the church investigation
9 was over, that it was the church's position with your parents'
10 considering that nothing had happened?

11 A. I don't understand the question.

12 MR. REGAN: That's all.

13 THE COURT: Any redirect?

14 MS. JONES: Yes, just briefly.

15 **REDIRECT EXAMINATION**

16 **BY MS. JONES:**

17 Q. As you sit here today do you believe you were
18 touched on your penis in November 2005 at that church camp?

19 A. Yes. At the time, I wouldn't wrap my head fully
20 around what had happened, but having grown older and matured,
21 I have a better understanding what had happened.

22 Q. Who do you believe touched you on your penis that
23 night?

24 A. Scott Moore.

25 MR. REGAN: Objection.

1 THE COURT: Overruled.

2 MS. JONES: Nothing further.

3 THE COURT: Any recross?

4 MR. REGAN: Yes, please.

5 **RECROSS-EXAMINATION**

6 **BY MR. REGAN:**

7 Q. Jordan, in your interview in November 7th, 2005,
8 your mom and dad were there, Randy Meyer and Nancy Brown were
9 there?

10 A. Yes.

11 Q. Everybody is trying to get to the bottom of what
12 happened; right?

13 A. Yes.

14 Q. And were you aware then that identification was a
15 big issue?

16 A. Yes.

17 Q. Everyone was struggling with who did what?

18 A. Yes.

19 Q. And it's important for you to tell them what you
20 knew because you were the only one there that remembered any
21 of this?

22 A. Yes.

23 Q. Do you remember you said, and I quote, "He could,"
24 and he is you, "could see an outline of a person but not a
25 face"?

1 A. Yes.

2 Q. Do you remember being interview further, and you
3 said you did not see a face at all?

4 A. Yes.

5 Q. Because that was true. You said that because that
6 was true?

7 A. Yes, because he had his back to me.

8 MR. REGAN: That's all.

9 THE COURT: Any redirect?

10 MS. JONES: No, Your Honor.

11 THE COURT: Thank you for your testimony.
12 You may step down. May this witness be excused?

13 MS. JONES: Yes, Your Honor.

14 THE COURT: Any objection?

15 MR. REGAN: Can I have a second?

16 THE COURT: Yes.

17 MR. REGAN: If I may, Judge?

18 THE COURT: Yes.

19 **FURTHER CROSS-EXAMINATION**

20 **BY MR. REGAN:**

21 Q. Jordan, did you explain in your statement as
22 well --

23 MS. JONES: Judge, I object.

24 THE COURT: There was no direct at this
25 time, so he's been excused. You may recall if you would like.

1 Would you like him to remain?

2 MR. REGAN: Yes.

3 THE COURT: You need to remain, but you may
4 step down. Thank you for your testimony. The State's next
5 witness.

6 MS. RASMUSSEN: Your Honor, may we
7 approach?

8 THE COURT: Yes.

9 (Whereupon, the following proceedings were
10 held at the bench outside the presence of the jury.)

11 MS. RASMUSSEN: Your Honor, in light of the
12 fact that the defense has waived any objection to the
13 Galbraiths testifying, it may be something we want to do. I'd
14 like to let the Court know we plan to rest after this. We can
15 take care of lunch and take up this proffer as far as Nick
16 Koch goes, and then the State will likely officially rest,
17 which we may call one of them briefly.

18 THE COURT: Okay. The Court has prepared
19 instructions to review, which we want to take up on the record
20 and the proffer. Any idea how long your proffer could take?

21 MS. RASMUSSEN: I think the whole thing
22 could take fifteen minutes. I've got three people, five,
23 five, five.

24 THE COURT: We'll take a lunch break, and
25 I'll have you guys come back a little bit earlier before the

1 jury, if that's acceptable with you.

2 MR. REGAN: Can I leave this with you until
3 later?

4 THE COURT: Yes. Anything further?

5 MS. RASMUSSEN: No.

6 MR. REGAN: No, Judge.

7 (Whereupon, the following proceedings were
8 held away from the bench in the presence of the jury.)

9 THE COURT: It is 11:48 and a good time for
10 our lunch recess at this juncture, and we're in the State's
11 case so we're going to take a lunch recess. I am going to
12 remind you of the Court's prior admonition: Do not discuss
13 the case among yourselves or review anything regarding this
14 case. It is 11:48, and we're going to reconvene at 1:15. If
15 you will just retire to the jury room and meet back in the
16 jury room at 1:15, and we'll stand in recess.

17 (Whereupon, the jury left the courtroom at
18 11:50 a.m., and proceedings resumed in the courtroom without
19 the presence of the jury at 1:05 p.m.)

20 THE COURT: We're back on the record in
21 State of Kansas versus Scott Moore, 10CR2633. Parties appear
22 as before, including the defendant with his counsel, Mr.
23 Regan. We are outside the presence of the jury. Mr. Regan
24 had wanted to make a proffer and present some evidence.

25 Before we do that, Ms. Rasmussen, is the State going to

1 have additional evidence?

2 MS. RASMUSSEN: The State is going to have
3 two additional witnesses, Tom Galbraith and Kim Galbraith,
4 just so we made a record. I know when we approached earlier,
5 Mr. Regan indicated this, but the Galbraiths were in the
6 courtroom not sequestered although they were endorsed
7 witnesses on the complaint, the State had no intention of
8 calling them. Mr. Regan indicated that since he had brought
9 up their statement that he had essentially invited that, and
10 as to them testifying after not having been sequestered, he
11 would waive any error as far as that.

12 THE COURT: Any comment, Mr. Regan?

13 MR. REGAN: Subject to the relevance of
14 their testimony, I have no objection to them having seen some
15 testimony and having them testify.

16 THE COURT: I am going to allow them to
17 testify. I would like to take up the proffer.

18 This is a little out of order, however, I would like to
19 take up the defense's proffer while we're outside the presence
20 of the jury. I asked them to come back at 1:15. So we have a
21 little bit of time to go on with the proffer, and then we'll
22 bring the jury back in and finish with the State's evidence
23 and also take up the motion that the defense has filed as
24 well.

25 MR. REGAN: Judge, just so you'll have a

1 forecast, I have three witnesses on the proffer. I'll call
2 the simplest shortest to the last.

3 THE COURT: Okay. Call your first witness.

4 SUSAN MOORE,
5 having been duly sworn to tell the truth, the whole truth and
6 nothing but the truth, testified as follows:

7 DIRECT EXAMINATION

8 BY MR. REGAN:

9 Q. Good afternoon. You are Sue Moore?

10 A. Susan Moore, yes.

11 Q. Scott's wife?

12 A. Yes.

13 Q. Preston's mother?

14 A. Yes.

15 Q. All right. This is a unique portion of the trial.
16 It's called an offer of proof session where we're going to
17 discuss some things with you outside the hearing of the jury.

18 A. Okay.

19 Q. Depending on how the Court rules, there are
20 certain things you may not be able to discuss with the jury,
21 so follow my guide?

22 A. Okay.

23 Q. I want to talk to you about two principal items.
24 Your son, Preston, and Nick Koch were good friends?

25 A. Yes.

1 Q. They both were in Scouting together?
2 A. Yes.
3 Q. There came a time after the outing to Philmont,
4 New Mexico.
5 MR. REGAN: May I approach the witness?
6 THE COURT: Yes.
7 Q. (By Mr. Regan) Did Preston and Nick go to a camp
8 together?
9 A. Yes, in Philmont.
10 Q. Scott did not go?
11 A. Correct, he did not.
12 Q. Was it your understanding that the two guys were
13 pup tent mates in a two-man tent?
14 A. That is my understanding.
15 Q. Did you send a family camera along?
16 A. I did.
17 Q. Was it the one we heard about with the broken
18 display in the back?
19 A. Yes, I actually tripped and broke it.
20 Q. When your son returned, did you look at the
21 photographs that were contained in the camera that were taken
22 on the camera?
23 A. Yes, I did.
24 Q. Did you notice some unusual photographs?
25 A. I did.

1 Q. Let me show you Defense Exhibits 13A, 14A and 15A.

2 Are these the unusual photographs you found on your camera?

3 A. They are.

4 Q. There's apparently a horizontal shot of a boy's
5 crotch and a vertical shot of a boy's crotch?

6 A. Yes.

7 Q. And a shot of a boy's rear end. That's what the
8 three exhibits are?

9 A. Correct.

10 Q. Do they fairly and accurately depict the
11 photographs you found on the camera?

12 A. They do.

13 Q. Are they pictures of your son's crotch?

14 A. I do not believe so. I do not recognize the
15 shirt.

16 Q. Did you have a conversation with your son as far
17 as what they were doing on his camera?

18 A. I did.

19 Q. What did you learn?

20 A. I learned that Nick Koch took those pictures.

21 Q. Were you ever given an explanation from Nick Koch
22 as to why he took those pictures?

23 A. No.

24 MR. REGAN: At this time for purposes of
25 this hearing only, Your Honor, we offer Defendant's Exhibits

1 13A, 14A and 15A into evidence.

2 THE COURT: State's position?

3 MS. RASMUSSEN: Your Honor, the State still
4 objects to their admission in the presence of the jury in the
5 case in chief, but if Mr. Regan just is trying to make a
6 record of those items for consideration of the Court's
7 consideration right now, I understand that.

8 THE COURT: For purposes of this proffer, I
9 will allow 13A, 14A and 15A to become part of the record.
10 That is not a ruling on admissibility for the trial however.

11 MR. REGAN: All right. Thank you.

12 Q. (By Mr. Regan) After you and your son had a
13 conversation, you learned from him, and he's subject to
14 cross-examination today by the State, but he did not take
15 those pictures?

16 A. Correct.

17 Q. No one else took those pictures?

18 A. Correct.

19 Q. Let's move on to another topic, ma'am. You were
20 going to graduate from Baker University on Saturday, May 15th,
21 2010?

22 A. Yes.

23 Q. Was there a celebration at your home commemorating
24 that and Preston's birthday?

25 A. Yes, there was.

1 Q. You all had a family dinner and outing at Old
2 Chicago?
3 A. We did.
4 Q. Followed by a movie?
5 A. Yes.
6 Q. Followed by a trip to your home?
7 A. Correct.
8 Q. Was there a conversation in your vehicle on the
9 way home between Scott Moore and Nick Koch that you were privy
10 to?
11 A. There was.
12 Q. That you heard?
13 A. Yes.
14 Q. You all were in the same car?
15 A. We were all in the same vehicle.
16 Q. Tell us in your own words what was discussed
17 between Scott and you?
18 A. Nick had brought up that he was dealing and using
19 drugs, and Scott said "I'm really disappointed in you, and you
20 need to clean up your act."
21 Q. Was it a long discussion?
22 A. No, it was pretty short. I mean those two
23 sentences.
24 Q. Was Preston in the car too?
25 A. Yes, he was.

1 Q. What was Nick's reaction to Scott admonishing him?
2 A. He just ignored us, ignored him and me for the
3 rest of evening. He pretty much just acted like a disciplined
4 child would be.
5 Q. Did his demeanor towards your husband carry on
6 throughout the rest of the night until he went to sleep?
7 A. It did.
8 Q. Or until you went to sleep because I understand
9 you went to sleep before the boys did?
10 A. Yes.
11 Q. Did he have the same animosity towards you as
12 well?
13 A. I guess so because I really didn't engage him in
14 anything. I was actually surprised when he came up and asked
15 to call home asking for consent to --
16 Q. We'll get there. But right now, did you take part
17 in the admonishment, did you say to Nick: Fly a little
18 straighter, act a little better at home and at school?
19 A. I did not.
20 Q. Did you express your disappointment in him?
21 A. I did not.
22 Q. Did your son get into that topic with Nick at all?
23 A. I believe so.
24 Q. All right.
25 MR. REGAN: That's our offer of proof on

1 that discussion, Your Honor.

2 THE COURT: Any cross-examination?

3 MS. RASMUSSEN: Yes.

4 **CROSS-EXAMINATION**

5 **BY MS. RASMUSSEN:**

6 Q. Just to make sure we are clear, Defendant's 13A,
7 14A and 15A, you can't see a face in those photos; correct?

8 A. Correct.

9 Q. And this Scout trip back in, when did it occur?

10 A. It was Philmont, July, I believe. I don't recall
11 the year. We have a Scouting picture of the outing.

12 Q. Okay. So at least July prior to December of 2009;
13 correct?

14 A. Correct.

15 Q. And was this a Boy Scout camp?

16 A. It's a Boy Scout camp. It's Philmont. It's a
17 High Adventure. It's something you have to draw a lottery in.
18 There's several Scouting pictures, and you can see what the
19 boys are wearing, and I believe that's Nick Koch's shirt.

20 Q. I was just asking if it was a Boy Scout camp,
21 ma'am?

22 A. Yes, it is.

23 Q. This Boy Scout camp, there were a lot of children
24 that attended there. I guess I shouldn't say "children,"
25 teenage boys?

1 A. I would say there's only like seven or eight.
2 Q. Okay. And then going into May of 2010, which Mr.
3 Regan just asked you about, you were in the car. That's your
4 testimony now?
5 A. Yes.
6 Q. Kirsten was in the car?
7 A. No.
8 Q. Okay. Marcus was in the vehicle?
9 A. Correct.
10 Q. And Preston also had two other friends in the
11 vehicle?
12 A. Correct.
13 Q. Nick was in the vehicle?
14 A. Yes.
15 Q. Okay. So how many people are we up to? That
16 would be five. Then your husband?
17 A. Yes.
18 Q. And so Nick, two other boys, Preston, Marcus, you
19 and your husband?
20 A. Correct.
21 Q. All in this vehicle, and that's your testimony
22 today?
23 A. Yes.
24 Q. So if other people said that you had taken a
25 different vehicle, specifically even Mr. Regan, that would be

1 incorrect?

2 A. Correct.

3 MS. RASMUSSEN: I have nothing further.

4 MR. REGAN: No redirect.

5 THE COURT: Thank you. You may step down.

6 Your next witness.

7 MR. REGAN: Preston Moore. May I retrieve
8 those for the next witness?

9 THE COURT: Yes, you may.

10 PRESTON PHILLIP MOORE,
11 having been duly sworn to tell the truth, the whole truth and
12 nothing but the truth, testified as follows:

13 DIRECT EXAMINATION

14 BY MR. REGAN:

15 Q. Good afternoon, Preston. Would you please state
16 your name for the record.

17 A. Preston Phillip Moore.

18 Q. How old are you?

19 A. I'm 19.

20 Q. Back off a little from the mic a little bit so you
21 don't blow it up with your voice. You, of course, are Scott
22 Moore's oldest and only son?

23 A. True.

24 Q. And you are formerly a good friend of Nick Koch,
25 the complaining witness in this case?

1 A. That is also true.
2 Q. You two boys were good friends in 2010 and before?
3 A. This is also true.
4 Q. And sometime thereafter is probably not the case?
5 A. Yes.
6 Q. All right. I want to talk with you about a
7 Scouting outing that the two of you took to Philmont, New
8 Mexico, the High Adventure Camp. Did you guys go to camp?
9 A. Yes.
10 Q. Did you share a pup tent together?
11 A. Yes.
12 Q. Two guys per tent?
13 A. Yes.
14 Q. How many pup tents in the camp?
15 A. Six or seven.
16 Q. All right. Did you bring a family camera?
17 A. The family camper?
18 Q. Camera.
19 A. Yes.
20 Q. Was it a digital camera?
21 A. Yes.
22 Q. Was it the one with a broken display on the back?
23 A. Yes.
24 Q. Did you take any photographs of boys' crotches out
25 there?

1 A. No.

2 Q. Did you take any photographs of Nick Koch's crotch
3 or your own?

4 A. No.

5 Q. When you came back home -- strike that. Prior to
6 coming home, did you entrust your camera to anyone else on
7 that trip?

8 A. No.

9 Q. And from time to time would you leave the tents
10 and leave your belongings for safekeeping, including the
11 camera in the tent?

12 A. Yes.

13 Q. When you got home, did you realize that someone
14 had taken three photographs of another boy's crotch --

15 A. Yes.

16 Q. -- on the trip with your home camera?

17 A. Yes.

18 Q. I'll ask you, did you take those photographs?

19 A. No.

20 Q. Let me hand you Defendant's 13A, 14A and 15A. Are
21 these fair and accurate photographs that you found on your
22 camera?

23 A. Yes.

24 Q. Are you able to say within any certainty whose
25 crotch that is in any of these three photographs?

1 A. They would appear to be Nick Koch's.

2 Q. How come you say that?

3 A. Judging by the apparel that he wore consistently
4 throughout the trip matches the clothing being displayed in
5 these photographs.

6 Q. These seem to be taken remotely. By that I mean,
7 it looks like the camera was set down and someone sat back and
8 took a picture?

9 A. Yes.

10 Q. Does your camera have that feature and
11 availability?

12 A. Yes.

13 Q. All right. Can you think of anyone else that took
14 these pictures on your camera?

15 A. No.

16 Q. Did you have a conversation with Nick about them?

17 A. No.

18 Q. Let's move on to another subject.

19 Did you become aware in 2009 and 2010 that your friend
20 Nick was involved with Satanism?

21 A. Yes.

22 Q. Did you find documents on his Facebook, MySpace,
23 things of that nature indicating his membership in Satanic
24 cults?

25 A. Yes.

1 Q. Did you learn that he was a guest and a friend of
2 the website of The Order of Lucifer?

3 A. Yes.

4 Q. Did you find that he had allowed The Order of
5 Lucifer be a friend on his website?

6 A. Yes.

7 Q. And prior to this litigation, have you downloaded
8 certain things from his social media, his Facebook?

9 A. Yeah.

10 Q. All right. Let me show you Defendant's 1A. Is
11 that a document showing Christ on the cross and some
12 defamatory things said about Christianity?

13 A. Yes.

14 Q. You found that on his website?

15 A. Yes.

16 Q. Defendant's 2A, is that a posting on his Facebook
17 indicating Lucifer falling from heaven?

18 A. Yes.

19 Q. Defendant's 3A, is that a photograph that you
20 found on his Facebook? This looks like Satan with two shiny
21 swords?

22 A. Yes.

23 Q. Are these pictures shown on his Facebook that say:
24 "Things that describe me, or things that I like"?

25 A. Yes.

1 Q. Defendant's 4A, are these Satanic hand gestures
2 like street gang signs?
3 A. Yes.
4 Q. Also, found in the same section of his Facebook?
5 A. Yes.
6 Q. Defendant's 5A, is that a pentagram defacing Santa
7 Claus?
8 A. Yes.
9 Q. Also found in the same section of his site?
10 A. Yes.
11 Q. Defendant's 6A, is this a photograph of Lucifer in
12 a robe with a long chain and a gold key there?
13 A. Yes.
14 Q. You found this in the same portion of his
15 Facebook?
16 A. Yes.
17 Q. Defendant's 7A, are these the commandments of The
18 Order of Lucifer found on his Facebook?
19 A. Yes.
20 Q. And do they include, "Thou shalt murder, steal,
21 bear false witness"?
22 A. Yes.
23 Q. As well as some other bad things?
24 A. Yes.
25 Q. These were found in his section of Facebook?

1 A. Yes.

2 Q. Did you also find on his Facebook, Defendant's 8A,
3 some comments and dialogue between he and a friend of his
4 named Nate?

5 A. Yes.

6 Q. Dated January 19th, 2009?

7 A. Yeah.

8 Q. Where Nick indicates, and I quote, and pardon my
9 language, it's his and not mine. "Nate is just mad because
10 his dad accidentally pulled pubic hairs when he was blowing
11 him"?

12 A. Yes.

13 Q. And Nate replied something that he didn't like
14 that?

15 A. Yes.

16 Q. And then Defendant's 9A, is that just a blowup of
17 those two entries on Defendant 8A?

18 A. Yes.

19 Q. Now, let me show you Defendant's Exhibit C. Is
20 this a page from Nick Koch's Facebook page indicating that the
21 folks from The Order of the Temple of Lucifer are friends on
22 his website?

23 A. Yes.

24 Q. And his Facebook?

25 A. Yes.

1 Q. They have been admitted by him to be his friend?

2 A. Yes.

3 Q. Did you look into their order and how many members
4 are friends of The Order of Lucifer on the Internet?

5 A. I do not know the exact number.

6 Q. Okay. Defendant's Exhibit D, does that show Nick
7 Koch to be on the front page by photograph and name, his
8 picture and name, on the front page, cover page, of The Order
9 of Lucifer?

10 A. Yes.

11 Q. And then Defendant's Exhibit E, F, G. Is this the
12 entire list of the folks that belong as friends to The Order
13 of Lucifer?

14 A. Yes.

15 MR. REGAN: At this time, Your Honor, for
16 purposes of this hearing only, we offer Defendant's C, D, E, F
17 and G.

18 MS. RASMUSSEN: And, Your Honor, I haven't
19 even seen these. Your Honor, may I voir dire the witness?

20 THE COURT: Yes.

21 VOIR DIRE EXAMINATION

22 BY MS. RASMUSSEN:

23 Q. Mr. Moore, this may seem like a silly question,
24 but you don't work for Facebook, do you?

25 A. No.

1 Q. You're familiar with it because I am sure we all
2 use it; right?

3 A. Yeah.

4 Q. Other people can log on to other people's Facebook
5 and have things?

6 A. With permission of that user.

7 Q. Okay. Or if your password gets taken by someone;
8 correct?

9 A. Generally, if the user shares that information
10 with somebody else.

11 Q. If it gets taken as well, gets written down and
12 someone took it?

13 A. That may be possible.

14 Q. It's possible. And you don't have any personal
15 knowledge, you weren't present when Nick Koch added any of
16 this stuff to his Facebook page, were you?

17 A. No.

18 MS. RASMUSSEN: Your Honor, at this time
19 the State's position is there's no adequate foundation for any
20 of this information. If the Court decides to let it in for
21 purposes of the proffer, it's the State's position still that
22 it's not admissible evidence.

23 THE COURT: Counsel, will you bring forward
24 C through G.

25 MR. REGAN: Yes, ma'am. Do you want me to

1 continue with my direct?

2 THE COURT: Give me just a minute.

3 MR. REGAN: Sure.

4 THE COURT: Okay. Go ahead with your
5 questioning.

6 **DIRECT EXAMINATION (Resumed)**

7 **BY MR. REGAN:**

8 Q. Let's talk about Satanism first. When you became
9 aware that your good buddy was engaged with this behavior, did
10 you have a talk with him?

11 A. Very much so.

12 Q. Did you express your concerns with him about that?

13 A. Yes.

14 Q. And what was his response?

15 A. He argued against the -- when I advised him to
16 move away from Satanic beliefs.

17 Q. In 2009 and 2010, did he maintain strong beliefs
18 in Satanism?

19 A. From what he expressed to me, yes, very much so.

20 Q. Did he tell you he rejected God?

21 A. Yes.

22 Q. Did he tell you he embraced the commandments in
23 The Order of Lucifer?

24 A. Yes.

25 Q. The most important one here, bearing false witness

1 against one's neighbor. Did he tell you he believed in that?

2 A. From all that he's conveyed to me, yes.

3 Q. And did you continue to express your concern to
4 him about it, yes or no?

5 A. Yes.

6 Q. Now, let's move on to this Eagle Scout stuff.
7 You're an Eagle Scout?

8 A. Yes.

9 Q. Do you boys have to take an oath to become one
10 after you do all of your work?

11 A. Yes.

12 Q. It's a pretty rigorous thing to become an Eagle
13 Scout; right?

14 A. Very much so.

15 Q. Relevant to Satanism and drug use, what rules did
16 he violate?

17 A. He violated the oath to God and the maintaining of
18 physical fitness.

19 Q. What relevant requirements to becoming an Eagle
20 Scout, other than the physical fitness and the oath to God?

21 A. The twelfth point of the Scout law is reverence
22 and being Satanic is a clear violation of being reverent.
23 Also, in the Scout oath, we take our oath to both God and
24 country. And in the Scout oath it states that the Scout is to
25 remain physically fit and morally straight.

1 Q. How about drug use, how does that figure in the
2 violation of the Scout oath?

3 A. It affects being physically fit and both being
4 clean, which is the eleventh point of the Scout law.

5 Q. All right. Let me take you back to May. Let's
6 talk about this for a moment.

7 May 15th, 2010, you all were celebrating your birthday?

8 A. Yes.

9 Q. And the eve of your mom's graduation?

10 A. Yes.

11 Q. Was it made clear to the boys that your mom was
12 graduating the next day?

13 A. Yes.

14 Q. After the family are treated to dinner and a
15 movie, was there a ride from dinner to your family home?

16 A. Yes.

17 Q. Was there a conversation between Nick and your
18 father about Nick's trouble with drug use and trouble at home
19 and at school?

20 A. Yes.

21 Q. Did Nick make some admissions to your dad about
22 his misbehavior?

23 A. Could you repeat it?

24 Q. Did Nick say he had done anything wrong to your
25 father?

1 A. Yes.

2 Q. What did he say?

3 A. He admitted to the use of drugs and distribution
4 of drugs at school.

5 Q. What did your father say?

6 A. My father expressed that he was disappointed in
7 Nick's behavior and suggested that he pursue a different
8 course.

9 Q. And how did Nick react to your dad?

10 A. He became dissocial and refused to talk to my
11 father thereafter.

12 Q. Okay. And was he resentful towards your dad the
13 rest of the night?

14 A. He exhibited signs of that, yes.

15 MR. REGAN: That's all, Your Honor.

16 THE COURT: Cross-examination?

17 **CROSS-EXAMINATION**

18 **BY MS. RASMUSSEN:**

19 Q. Going back to the pictures from New Mexico, when
20 did you go to New Mexico?

21 A. It would have been the summer before the incident
22 occurred, so it would have been -- I'm trying to think what it
23 ought to be -- so 2009.

24 Q. So it would have been the summer before, so almost
25 a year before everything came out in May?

1 A. Yeah, three-quarters of a year to be more precise.
2 Q. And you weren't present when those photographs
3 were taken?
4 A. No.
5 Q. You didn't take them of Nick or anyone else?
6 A. No.
7 Q. Going back to the Satanism. You said that you had
8 a talk with Nick about Satanism?
9 A. Yes.
10 Q. And you just told him he shouldn't be involved in
11 that?
12 A. More in depth, but the gist of it was I was trying
13 to persuade him away from being part of Satanism, yes.
14 Q. You didn't go into every specific aspect of
15 Satanism, did you?
16 A. We did elaborate on details, and he did elaborate
17 to me on his beliefs on that, yes.
18 Q. I just want to make sure, on May 15th Nick didn't
19 plan to stay the night originally; correct?
20 A. It was not directly expressed, but it was
21 generally hoped for by the group that everyone would spend the
22 night. I would say that he would have plans to, but it was
23 not directly stated.
24 Q. Okay. So he wanted to. It was kind of everyone's
25 hope that he would get to?

1 A. Yes.

2 Q. But later on in the night after returning home,

3 there's a call to his mother asking for confirmation that he

4 can?

5 A. Yes. He requested that my father call his mother

6 so that he may spend the night.

7 Q. So he requested that your dad call his mom?

8 A. Yes.

9 Q. Okay. And in the car ride home, your sister was

10 in the car?

11 A. I do not believe so.

12 Q. Who did your sister ride with?

13 A. My sister drove herself.

14 Q. And she's in her car all by herself?

15 A. Yes.

16 Q. And you also had two friends over?

17 A. Yes.

18 Q. What are those friends' name?

19 A. Actually, I had three friends. It was Marcus

20 Blanckensee, Alex Dean, and Brad Luchen.

21 Q. Luchey?

22 A. Luchen.

23 Q. Oh, I'm sorry. And Nick was in the car as well?

24 A. Yes.

25 Q. Who else was in the car?

1 A. My father and mother.

2 MS. RASMUSSEN: I have nothing further.

3 THE COURT: Any further questions of this
4 witness?

5 MR. REGAN: Yes.

6 REDIRECT EXAMINATION

7 **BY MR. REGAN:**

8 MR. REGAN: Can I approach the witness,
9 please?

10 THE COURT: Yes.

11 Q. (By Mr. Regan) Nick, lastly -- I'm sorry, Preston,
12 lastly did you find that your friend, Nick, had published on
13 the Internet himself and his girlfriend and another guy
14 sitting around simulating a sex act on a bong?

15 A. Yes.

16 Q. Have you reviewed that?

17 A. Yes.

18 Q. It's a brief piece of video taken from his
19 Facebook or his girlfriend's Facebook open to the public?

20 A. Yes.

21 Q. Does Defendant's Exhibit B, contain that video
22 that you know?

23 A. Yes.

24 MR. REGAN: At this time, Your Honor, for
25 purposes of this hearing only, we offer Defendant's Exhibit B

1 into evidence.

2 THE COURT: Any objection to B for purposes
3 of this hearing?

4 MS. RASMUSSEN: For purposes of this
5 hearing, no, Your Honor.

6 THE COURT: I'll allow it for this portion
7 only.

8 (Whereupon, Defendant's Exhibit B was
9 admitted into evidence.)

10 MR. REGAN: Judge, I don't know if you wish
11 to review it through the Court's laptop or Mr. Whitworth's
12 laptop?

13 THE COURT: You'll have to play that any
14 way you want to do that.

15 MR. REGAN: Do you want to do that matter
16 later to keep this moving?

17 THE COURT: That will be fine.

18 MR. REGAN: I'm done with this witness, and
19 Nick Koch is last.

20 THE COURT: Okay. You may step down.

21 MR. REGAN: Preston, don't talk about the
22 case and wait until you are recalled.

23 THE WITNESS: All right.

24 MS. RASMUSSEN: Your Honor, maybe I should
25 just note, Nick Koch has already been voir dired regarding

1 these issues. The State has no objection for purposes of this
2 hearing incorporating his previous testimony. I don't know
3 what else Mr. Regan might need from him, but we certainly
4 don't object to incorporating that testimony during this voir
5 dire outside of the presence of the jury into this proffer.

6 MR. REGAN: I appreciate that.

7 THE COURT: I appreciate that.

8 MR. REGAN: Can I have those three
9 exhibits. Yes, thank you.

10 THE COURT: Here are 13A, 14A and 15A all
11 back.

12 NICHOLAS KOCH,
13 having been duly sworn to tell the truth, the whole truth and
14 nothing but the truth, testified as follows:

15 DIRECT EXAMINATION

16 BY MR. REGAN:

17 Q. Good afternoon, Nick. We brought you back for
18 brief testimony outside from the hearing of the jury; okay?

19 A. Okay.

20 Q. Let me show you 13A through 15A. You saw these
21 the other day?

22 A. I did not.

23 Q. You've never seen those before?

24 A. I have not.

25 Q. Let me show you three photographs for purposes of

1 this hearing. Exhibits 13A, 14A and 15A, have you seen these
2 before?

3 A. I have not, no.

4 Q. Is this the shirt you were wearing at Philmont?

5 A. I believe so, yes.

6 Q. Are those the shorts you were wearing at Philmont?

7 A. Probably, yeah.

8 Q. Did you take Preston Moore's camera and take
9 pictures of your own crotch with the camera?

10 A. No, I did not.

11 Q. Did you take pictures of another boy's crotch with
12 his camera?

13 A. No.

14 Q. Are you sure?

15 A. I am positive.

16 Q. Do you know who is in these pictures?

17 A. No.

18 Q. Are you sure?

19 A. Yes.

20 Q. Were you required to wear a certain uniform, a red
21 shirt in those days at the camp?

22 A. No, I was not.

23 Q. How about shorts?

24 A. It was whatever felt comfortable to us.

25 Q. All right. Let's talk about your Facebook.

1 You've got a Facebook; right?

2 A. I do.

3 Q. You had one last night?

4 A. I believe so, yes.

5 Q. You had one in 2009 and 2010?

6 A. I did, yes.

7 Q. And you had some testimony yesterday denying the
8 involvement with these folks from The Order of Lucifer;
9 correct?

10 A. Uh-huh, yes.

11 Q. Let me show you Defendant's Exhibit C. Okay. At
12 the top that's you, Nick Koch; correct?

13 A. Yes.

14 Q. Have you not admitted The Order of the Temple of
15 Lucifer to your Facebook as a friend?

16 A. Yes, I did.

17 Q. You didn't have do that, did you?

18 A. I didn't, no.

19 Q. How long have you been on social media as your
20 friends?

21 A. For a very long time.

22 Q. Up until last night?

23 A. Yes.

24 Q. You could have gone home and taken it off last
25 night, if I wanted to?

1 A. I could have if I wanted to, but I didn't have a
2 computer do it.

3 Q. So let me show you Defendant's Exhibit D. This is
4 the home page, front page of the site for The Order of the
5 Temple of Lucifer; correct?

6 A. Yes.

7 Q. And on their home page, on their very front page
8 is your picture with some friends and your name?

9 A. Yes.

10 Q. And you're aware these folks are putting you out
11 to the world as one of their friends?

12 A. Quite frankly, they can do that.

13 Q. And their cover boy?

14 A. They can do that, that's fine.

15 Q. You've done nothing to take it down. You're cool
16 with that; right?

17 A. I don't care either way, you know.

18 Q. It's done with your consent; correct?

19 A. Yes.

20 Q. Because they just didn't steal this picture from
21 you, you sent that to them; right?

22 A. That was just my profile picture.

23 Q. But you sent that to them?

24 A. A long time ago, yes.

25 Q. So they could post it on their website?

1 A. If they wanted to, yes.

2 Q. And maybe get more kids to join because they like

3 how you and your friends look?

4 A. Yeah.

5 Q. And then let me show you Defendant's Exhibit E.

6 This is a list of the friends of The Order of the Temple of

7 Lucifer; correct? At the top of the upper, left-hand corner

8 is you, Nick Koch, the same picture that you're in?

9 A. Yes.

10 Q. You let them list you as a friend for all to see?

11 A. Yes.

12 Q. And then Defendant's Exhibit F and G are just the

13 remainder of the list of friends of The Order of the Temple of

14 Lucifer?

15 A. Yes.

16 Q. Right?

17 A. Yes.

18 Q. And there's about forty people all told that have

19 joined this group, excluding you?

20 A. I wouldn't know.

21 Q. Does that sound about right?

22 A. I guess.

23 Q. And nowhere on your Facebook have you renounced

24 the Order of Lucifer; correct?

25 A. Yes, I guess.

1 Q. Nowhere on your Facebook or any Internet, social
2 media pertaining to you have you renounced the commandments of
3 this group?

4 A. Correct.

5 Q. Nowhere have you chosen to say that: Hey, I don't
6 believe what these guys stand for?

7 A. No.

8 Q. Do you agree with me one of their commandments is:
9 Thou shalt murder, commit adultery, steal and bear false
10 witness?

11 A. I guess, yeah.

12 Q. Do you recall having a conversation with Preston?

13 A. We've had many conversations.

14 Q. Did you have a conversation about Satanism with
15 him?

16 A. I do not believe so.

17 Q. Do you recall him telling you he was concerned
18 about your Satanic beliefs and wanted you to change?

19 A. Not Preston. I've talked with my other friends
20 about it, but not Preston.

21 Q. And, lastly, do you recall a conversation on the
22 car ride home where Scott and Preston were present on the way
23 home from the movie to the Moore home?

24 A. We were talking about a lot of things.

25 Q. Do you recall admitting to Mr. Moore you had been

1 suspended from school and gotten in trouble at home for
2 selling drugs at school?

3 A. I don't recall that specific conversation, no.

4 Q. Is it possible it happened, and you don't recall
5 because it's been a while?

6 A. It might have, yes.

7 Q. Do you recall Mr. Moore saying he was disappointed
8 in you and that you should straighten yourself out?

9 A. That I do not, no.

10 Q. Is it possible that was said, and you don't
11 recall?

12 A. It quite frankly could have, possible, yes.

13 Q. Do you remember getting angry at Mr. Moore because
14 he would dare to discipline you or admonish you and you
15 weren't prepared?

16 A. No. I was never angry with Mr. Moore for any
17 reason on that day.

18 Q. Are you sure about that?

19 A. I am positive.

20 MR. REGAN: That's all, Your Honor.

21 THE COURT: Ms. Rasmussen?

22 **CROSS-EXAMINATION**

23 **BY MS. RASMUSSEN:**

24 Q. Nick, help us out a little bit with Facebook.
25 People send you friend requests, and you click accept or

1 reject?

2 A. Yes.

3 Q. Do you have people who are quote, unquote
4 "friends" on Facebook that aren't even really your friends?

5 A. That I do, yes.

6 Q. You just kind of accept, accept, accept?

7 A. Basically, yes.

8 Q. And just because you're a friend of someone on
9 Facebook doesn't mean you necessarily agree with their tenets?

10 A. Yes.

11 Q. And I think you testified, Mr. Regan just said you
12 never renounced the principles of The Order of Lucifer.
13 Actually, yesterday you were questioned a little bit about
14 this, and you said you did not believe in those things;
15 correct?

16 A. I did not know.

17 Q. When you say, "I did not know"?

18 A. I did not renounce them because I never accepted
19 them.

20 Q. Okay. So the whole bearing false witness,
21 approving of murder, those are not things that you religiously
22 believe in?

23 A. They are not, no.

24 MS. RASMUSSEN: I have nothing further.

25 THE COURT: Thank you for your testimony.

1 You may step down. Further proffer?

2 MR. REGAN: If I might.

3 THE COURT: I'm sorry. There's redirect,
4 if you'll sit back down.

5 REDIRECT EXAMINATION

6 BY MR. REGAN:

7 Q. You sought this group out. They did not seek you
8 out; true?

9 A. They were introduced to me through friends that I
10 had.

11 Q. And you say you accept anybody that wants to be
12 your friend, you click in and you befriend anybody?

13 A. Yes.

14 Q. When he was alive, if Osama Bin Laden were trying
15 to be your friend, would you have befriended him?

16 A. If I knew who he was, probably not, but I didn't
17 care at the time. I just accepted it because I didn't care.

18 MR. REGAN: No further questions.

19 THE COURT: Any recross?

20 MS. RASMUSSEN: No, Your Honor.

21 THE COURT: You may step down.

22 MS. RASMUSSEN: May Mr. Koch be excused?

23 THE COURT: Mr. Regan?

24 MR. REGAN: Can I wait until you're done
25 with your ruling?

1 THE COURT: Yes. You can step down, but
2 you'll need to remain in the witness room or outside the
3 courtroom.

4 MR. REGAN: Your Honor, please, that
5 concludes our offer of proof on these various issues.

6 THE COURT: Okay. Exhibits 13A, 14A, 15A,
7 the pictures of the shorts, there's no face in those pictures.
8 I don't believe anyone saw who took the pictures. There's no
9 year, maybe 2009, summer. It's a boy's clothing. I don't
10 see, frankly, any relevance to these pictures, any sort of
11 evidentiary value to them, nor do I believe that foundation
12 has been laid for them. So they will not be allowed.
13 Exhibits 1A through 9A, I don't believe are relevant at all.
14 In fact, I do believe that they violate the statute K.S.A.
15 60-422(d), and so they will not be allowed.

16 I will reserve ruling on B, as I have not seen the
17 contents of that. It doesn't sound as though that would have
18 relevance, but I will look at that at the appropriate time
19 that Mr. Regan wants to show it.

20 The Facebook pages that I have before me C through G, I
21 don't find relevant at all. In fact, I do find that they
22 violate statute as well. A person's religious beliefs are
23 prohibited pursuant to 60-430, and they also violate 60-422.

24 The conversation about misbehavior at school, I will
25 allow Mr. Regan to present evidence regarding that there was a

1 conversation as it would relate to any sort of motive for this
2 young man to be angry with the defendant.

3 I will not allow the content to involve the distribution
4 of drugs, as I have previously ruled. But that there was a
5 conversation about him misbehaving at school, and Mr. Moore
6 trying to redirect him on that, admonishing on that.

7 I would ask that you admonish your witnesses regarding
8 that, and I will reserve ruling on B. Have we covered
9 everything now?

10 MR. REGAN: I think we have, Judge. When
11 we get to that portion of the conversation between the folks,
12 and my witnesses will be Sue and Preston as to that evidence,
13 will you please give me a little leeway to lead my witnesses
14 through that portion so that I don't step on any land mines.

15 THE COURT: Yes. And please do admonish
16 them on the Court's rulings so that they don't unintentionally
17 violate the Court's order.

18 I also received the defendant's motion for judgment of
19 acquittal at the close of State's evidence. I know the State
20 has two quick witnesses, but I have reviewed the motion. At
21 the appropriate time, I will take this up. Is there anything
22 you want to take up out of the presence of the jury?

23 MR. REGAN: With regard to Count I, I
24 believe by the witness's own testimony, there was no touching.
25 As you recall, the testimony and exhibits of the Sunflower

1 House video that there was no touching of a sexual nature.

2 We're asking for a verdict of acquittal at the close of
3 the State's evidence on that count, and I don't believe the
4 State has proven the intent as required in Count II. So we
5 respectfully ask that the Court find in our favor at the close
6 of the State's evidence.

7 THE COURT: Ms. Rasmussen?

8 MS. RASMUSSEN: Your Honor, Count II is the
9 count that addresses the December 2009 incident, and Nick's
10 testimony was indicated that he was touched in the groin area.

11 Count I, Nick also testified that he was touched in his
12 groin area. The State has made a prima facie case for all the
13 claims.

14 As for the intent, you can infer based upon people's
15 actions what their intent is. What other intent could there
16 be touching that part of the body?

17 THE COURT: Okay. I will take that under
18 advisement, and you can renew your motion, Mr. Regan, at the
19 close of State's evidence. Are we ready for the jury?

20 MS. RASMUSSEN: I believe we are.

21 (Whereupon, the jury entered the courtroom
22 at 1:50 p.m.)

23 THE COURT: We are on the record in the
24 State of Kansas versus Scott P. Moore, 10CR2633. Parties
25 appear as before. Counsel appears with the defendant in

1 person. I apologize for the delay for the jury. We had a
2 legal issue that the lawyers need addressed, and we did that
3 and we're now ready for further presentation of evidence by
4 the State. Ms. Rasmussen.

5 MS. RASMUSSEN: Your Honor, the State calls
6 Tom Galbraith.

7 **THOMAS GALBRAITH,**
8 **having been duly sworn to tell the truth, the whole truth and**
9 **nothing but the truth, testified as follows:**

10 **DIRECT EXAMINATION**

11 **BY MS. RASMUSSEN:**

12 Q. What is your name?

13 A. My name is Thomas Lee Galbraith.

14 Q. Mr. Galbraith, you have a son named Jordan?

15 A. That's correct.

16 Q. And you've actually been in the courtroom today
17 when Jordan previously testified?

18 A. Correct.

19 Q. And you heard some of the questions that Mr. Regan
20 posed of your son on cross-examination?

21 A. I did.

22 Q. I just want to ask you briefly about some of those
23 things and the conversations you had with the church. Back in
24 2005, were you aware that the church investigated some acts
25 regarding your son and Scott Moore?

1 A. Yes, yes.

2 Q. And at any time during the church's investigation,
3 did you ever say that nothing happened at that church camp?

4 A. I don't recall ever saying that.

5 Q. Did you ever say that you didn't believe your son?

6 A. No.

7 Q. Did you ever apologize to the church for your son
8 coming forward and making these statements?

9 A. No.

10 Q. After that period, did you feel comfortable
11 sending Jordan back to that church camp with the defendant
12 volunteering there?

13 MR. REGAN: Objection.

14 THE COURT: Overruled.

15 A. I did not feel comfortable, although it wasn't an
16 issue because Jordan didn't want to go back.

17 MS. RASMUSSEN: I have nothing further.

18 THE COURT: Cross-examination?

19 CROSS-EXAMINATION

20 BY MR. REGAN:

21 Q. Mr. Galbraith, I have a few questions. So you
22 were there watching your son testify earlier today?

23 A. Yes.

24 Q. You're here as supportive parents?

25 A. Yes.

1 Q. Let me take you back to 2005. Do you recall there
2 was a church investigation?

3 A. Yes.

4 Q. Do you recall the church showing interest in your
5 son's allegations in trying to get to the bottom of it?

6 A. I remember that.

7 Q. Do you recall Lee Jost was onsite at the camp
8 when this thing first came about?

9 A. Yes.

10 Q. And he looked into it and then church superiors
11 and the elders were brought in and investigated further?

12 A. I don't know if Mr. Jost looked into it. I don't
13 have information about that.

14 Q. Do you remember being interviewed by Randy Meyer
15 and Nancy Brown who were higher up in the Church of the
16 Resurrection in those days?

17 A. Yes.

18 Q. Do you remember bringing your son, Jordan, to the
19 office and being interviewed more than once?

20 A. I do.

21 Q. During the interviews, did they tell you how the
22 investigation was going and how they were learning and trying
23 to get more details from your son?

24 A. Restate.

25 Q. Do you recall them sharing with you the details of

1 the investigations?

2 A. No. I don't remember them telling us the status
3 of the investigation.

4 Q. Do you recall them wanting to get more details
5 from your son?

6 A. Yes.

7 Q. Do you recall a meeting when -- your wife's name
8 is Kim?

9 A. Correct.

10 Q. When you all were present at the pastor's
11 conference room in the west building with Randy Meyer and
12 Nancy Brown on November 7th, 2005?

13 A. I remember -- I don't remember the date, but I
14 remember being in a meeting with them.

15 Q. And do you remember where everybody was trying
16 their best to be truthful with the church investigators so
17 they could see what happened?

18 A. Yes.

19 Q. To do something about it as they saw fit?

20 A. Yes.

21 Q. So that justice could be served.

22 A. Absolutely.

23 Q. Do you recall making these comments? Do you
24 remember saying that you were more frustrated with the way Lee
25 Jost handled the case than anything else?

1 A. I don't remember a lot of what was said in those
2 meetings. I'm sorry.

3 Q. Is it possible that's what you said, and you just
4 don't remember?

5 A. It's possible.

6 Q. I understand it's been a long time, but has the
7 State showed you reports with your name on them before you
8 testified today to the best of your recollection?

9 A. No.

10 Q. To refresh your recollection?

11 A. No.

12 Q. Do you recall making it clear to Nancy and Randy
13 that you were not interested in getting anyone in trouble?
14 Did you say that?

15 A. No.

16 Q. Do you recall saying, "We feel that this has
17 already been blown out of proportion and that you were very
18 happy with the church's responses since Sunday"?

19 A. I don't recall saying that.

20 Q. Do you recall saying: We will close by saying you
21 feel bad for Lee and for Scott as you recognize the situation
22 they were in without a positive identification of the alleged
23 person?

24 A. I don't recall ever saying that.

25 Q. Do you recall you closing the meeting by

1 acknowledging, along with Jordan, that Jordan wasn't
2 positively sure that something had happened, although it
3 seemed like something had?

4 A. I don't remember saying that.

5 Q. Is it possible you did, and you just don't
6 remember?

7 A. I don't believe I would have said those things
8 honestly. Because we believed Jordan then, and we believe him
9 now.

10 Q. Nancy Brown, was she a friend of yours back then?

11 A. No.

12 Q. If someone that was there testified that's what
13 was said, would you disagree with them?

14 A. I can't say one way or the other because I don't
15 remember a lot of the testimony.

16 MR. REGAN: That's all, sir. Thank you.

17 THE COURT: Any redirect?

18 MS. RASMUSSEN: Nothing further of this
19 witness.

20 THE COURT: Thank you for your testimony.
21 You may step down.

22 MS. RASMUSSEN: Your Honor, at this time,
23 the State calls Kim Galbraith.

24

25

1 KIMBERLY GALBRAITH,
2 having been duly sworn to tell the truth, the whole truth and
3 nothing but the truth, testified as follows:

4 DIRECT EXAMINATION

5 BY MS. RASMUSSEN:

6 Q. What is your name?

7 A. Kimberly Galbraith.

8 Q. And do you have a son named Jordan Galbraith?

9 A. I do.

10 Q. Have you been in here listening to some of the
11 court proceedings, including your son's testimony?

12 A. Yes, I have.

13 Q. And you heard some of the questions posed by Mr.
14 Regan about statements you may have made?

15 A. Yes.

16 Q. And I want to talk to you a little bit about back
17 in 2005. There was an investigation done by the church?

18 A. Yes, there was.

19 Q. And your family, as part of that investigation,
20 made Jordan available to meet with church officials?

21 A. Yes, we did.

22 Q. Did you attend?

23 A. We attended every meeting.

24 Q. And at any time during those meetings, did you say
25 that you were sorry, that nothing happened?

1 A. No, I did not.

2 Q. Did you ever say you didn't believe your son?

3 A. No, I did not.

4 Q. Did you ever make any apologies to Scott Moore?

5 A. No, I did not.

6 Q. After that investigation, let me ask you this,
7 were you thrilled with the outcome at the time?

8 A. I was never really told the outcome. We completed
9 our investigation, and we were not told what was going to
10 happen.

11 Q. Do you know that Scott Moore went back and
12 volunteered at that camp the following year?

13 A. I was surprised to find that out.

14 Q. Would you have felt comfortable sending Jordan
15 back to that camp?

16 MR. REGAN: Objection. Irrelevant.

17 THE COURT: Overruled.

18 A. No, I would not.

19 MS. RASMUSSEN: I have nothing further of
20 this witness.

21 THE COURT: Cross-examination?

22 **CROSS-EXAMINATION**

23 **BY MR. REGAN:**

24 Q. Ms. Galbraith, throughout the investigation of
25 this case, you were present when your son was interviewed;

1 correct?

2 A. I was present in every section that we had. There
3 was a time when Randy and Nancy asked you to step outside
4 because they were going to ask, I think, something
5 uncomfortable about the incident, and we asked Jordan if
6 that's what he wanted, we stepped outside momentarily, and
7 then returned.

8 Q. Sometimes when they were done talking to Jordan,
9 you all would rejoin them in the room and talk further?

10 A. We were in the room all the remainder of that time
11 other than maybe a three-minute interval when we excused
12 ourselves.

13 Q. Are you aware that you and your husband's
14 statements to church personnel are contained in the
15 prosecutor's file?

16 A. I have not seen any statements from Church of the
17 Resurrection ever that were written down.

18 Q. Are you aware that I've been given documents from
19 the prosecutor indicating contents of an interview between you
20 and the church officials back on November 7th, 2005?

21 A. The only thing I'm aware is sitting here in court
22 this morning you appeared to reference those.

23 Q. I want to take you back to an interview that the
24 court records indicate took place between Tom Galbraith, Kim
25 Galbraith, that's you; right?

1 A. Yes.

2 Q. Jordan, of course, is your son; right?

3 A. Yes.

4 Q. Randy Meyer, Nancy Brown?

5 A. That's the people that would have been meeting,
6 the only people.

7 Q. And you did meet in the pastor's conference room
8 in the west wing of the church?

9 A. We met in a conference room. I don't know what
10 it's called.

11 Q. You met in the conference room on November 7th,
12 2005?

13 A. That would be the date to the best of my
14 recollection.

15 Q. Do you recall stating to Randy Meyer and Nancy
16 Brown that you want to make it clear you were not interested
17 in getting anyone in trouble. Do you recall saying that?

18 A. I don't recall that.

19 Q. Is it possible you did?

20 A. It's possible.

21 Q. Do you recall saying this had already been blown
22 out of proportion, and you were very happy with the
23 responsiveness of the church since Sunday?

24 A. I don't recall.

25 Q. Is it possible you did?

1 A. It's possible.

2 Q. Do you recall that the meeting kind of closed by
3 you saying that you felt bad for Lee, and felt bad for Scott
4 as you recognized the situation they were in without a
5 positive identification of the alleged person?

6 A. I don't recall. It's possible.

7 Q. Did you also say in conclusion that you
8 acknowledge that Jordan was not positively sure that something
9 had happened to him, although it felt like something had?

10 A. Do I just say yes or no, or may I respond?

11 THE COURT: If you know the answer, you may
12 answer.

13 A. In that particular meeting at that point in time,
14 he said he could not identify that it was Scott that did it
15 but he was sure that something had happened that night.

16 Q. But my question, do you recall saying that you
17 acknowledged, along with Jordan, that Jordan was not entirely
18 sure that something did happen to him, although he felt like
19 something could have?

20 A. I don't recall saying that.

21 Q. Again, is it possible?

22 A. It's possible.

23 MR. REGAN: That's all, ma'am.

24 THE COURT: Redirect?

25

1 REDIRECT EXAMINATION

2 BY MS. RASMUSSEN:

3 Q. Why didn't Jordan say he couldn't identify exactly
4 who it was?

5 MR. REGAN: Objection. Calls for
6 speculation as to why someone else.

7 THE COURT: Overruled. She may answer, if
8 she knows.

9 A. In the discussions, Jordan said that he could see
10 the shape of the individual, but that he could not see the
11 person's face, simply the size of the individual.

12 Q. (By Ms. Rasmussen) So without a face, he wouldn't
13 say for certain that it was Scott Moore?

14 A. That was the concern.

15 MS. RASMUSSEN: I have nothing further.

16 MR. REGAN: No further.

17 THE COURT: Thank you for your testimony.
18 You may step down. Anything further?

19 MS. RASMUSSEN: Nothing by the State. The
20 State rests.

21 (Whereupon, the State rests.)

22 THE COURT: Mr. Regan, do you wish to
23 present evidence?

24 MR. REGAN: I do, Judge. May we be heard
25 for a moment at the bench?

1 THE COURT: Yes.

2 (Whereupon, the following proceedings were
3 held at the bench outside the presence of the jury.)

4 MR. REGAN: Your Honor, now that the Court
5 has heard all the evidence relative to 60-455, related things,
6 I'd ask the Court to find as a matter of fact and matter of
7 law that they are not relevant to proof of opportunity and
8 intent, motive, modus operandi of my client, as you've now
9 heard. Maybe what you and Judge Ruddick got to hear by
10 proffer of Counsel that none of this is sufficiently identical
11 to what happened with Nick Koch at the hand of my client is
12 closely enough in time for the admissibility of this evidence.
13 So I respectfully ask the Court to reconsider my motion in
14 limine to keep the 60-455 evidence out and let us try the case
15 without the 60-455 evidence.

16 THE COURT: State?

17 MS. RASMUSSEN: Your Honor, the State's
18 position is the 60-455 evidence is under (d), which doesn't
19 require. It's the State's position that this isn't admissible
20 under 60-455(d), which I don't go into all the statutory
21 authority, but as well as under (b), that's the State's
22 position all along.

23 The State has never deviated from the facts. We
24 concluded in our response to his motion for reconsideration
25 every statement those children had ever made in the prior

1 investigation. So that way the Court would be fully aware of
2 it. It's all 15, 16-year-old boys in the middle of the night.
3 They all involve touching, or attempted beginning touching.
4 They all involve lights now in dark rooms.

5 It's the State's position that this is similar to show
6 that the defendant committed all these acts to prove identity.
7 So the State would ask that you overrule the defendant's
8 motion.

9 The State would also request that you deny the
10 defendant's motion for judgment of acquittal.

11 MR. REGAN: Judge, regarding our motion for
12 judgment of acquittal, in the event I misspoke as to the order
13 of the counts. There's no evidence that the Christmas of '09
14 count actually occurred, that there was no sexual touching
15 alleged at that time, and I think the Sunflower House tape
16 bore that out.

17 THE COURT: I'm going to deny the motion
18 for judgment of acquittal. I think a prima facie case has
19 been made. I will allow it to go to jury.

20 Regarding the 60-455, that motion is also denied, as is
21 the motion for a mistrial.

22 MR. REGAN: Can I have a moment to admonish
23 my witnesses?

24 THE COURT: Do you need more than a couple
25 of minutes to ask?

1 MR. REGAN: No, I can get right to it.
2 (Whereupon, the following proceedings were
3 held away from the bench in the presence of the jury.)
4 THE COURT: The State has rested. It is
5 now time for presentation of the evidence by defense, if the
6 defense so wishes.
7 MR. REGAN: May it please the Court,
8 Counsel, ladies and gentlemen, I call Preston Moore to the
9 stand.
10 PRESTON PHILLIP MOORE,
11 having been duly sworn to tell the truth, the whole truth and
12 nothing but the truth, testified as follows:
13 DIRECT EXAMINATION
14 BY MR. REGAN:
15 Q. Good afternoon, sir, please state your name for
16 the Judge and jury.
17 A. Preston Moore.
18 Q. How old are you?
19 A. I am nineteen years old.
20 Q. You, of course, are Scott's son?
21 A. Yes.
22 Q. His oldest son and only son?
23 A. Yes.
24 Q. Kirsten is your older sister?
25 A. Yes.

1 Q. You lived here in Johnson County all your life?
2 A. Yes.
3 Q. Are you currently involved in Scouting?
4 A. Yes.
5 Q. I want you just to lean back so you don't have to
6 lean forward. I know you've never done this before, and try
7 to relax a little bit; okay. Are you active in Scouting with
8 your troop?
9 A. Yes.
10 Q. Are you in the Tribe of Mic-O-Say?
11 A. Yes.
12 Q. Basically, what is that?
13 A. It is an honor organization developed for
14 Scouting.
15 Q. What is your rank in the tribe?
16 A. I am a Keeper of the Sacred Bundle.
17 Q. Are you an Eagle Scout?
18 A. Yes.
19 Q. Did you get awards beyond your Eagle Scout?
20 A. Yes.
21 Q. What are they, please?
22 A. I earned a Bronze Palm after the rank of Eagle
23 Scout.
24 Q. Where do you go to school?
25 A. The University of Kansas.

1 Q. What year are you?
2 A. I am a sophomore.
3 Q. What are you majoring in?
4 A. I am majoring in mechanical engineering.
5 Q. How are you doing in school?
6 A. I am doing well, thank you.
7 Q. I'm taking you back to '09 and 2010, were you
8 friends with Nick Koch?
9 A. Yes.
10 Q. And Marcus Blanckensee?
11 A. Yes.
12 Q. How long had you known those boys at that time?
13 A. I'd say about five, four or five years, somewhere
14 in that time frame, so a couple of years.
15 Q. Did you guys go to the same school or a different
16 school?
17 A. Marcus Blanckensee and Nick Koch both went to Blue
18 Valley West and I went to Blue Valley High School.
19 Q. Were you involved in the same church?
20 A. No.
21 Q. How about scouting activities?
22 A. Yes.
23 Q. Which boys?
24 A. With both Marcus and Nick.
25 Q. How old were those boys in May of 2010?

1 A. Sixteen -- seventeen.
2 Q. Let's discuss the sleepover incident in your home
3 in May 2010; all right. What's your birth date?
4 A. May 21st, 1993.
5 Q. Was it decided to celebrate a little early that
6 year?
7 A. Yes.
8 Q. Did you decide to have some buddies over?
9 A. Yes.
10 Q. To help you celebrate your birthday?
11 A. Yes.
12 Q. Was there also another family occasion that
13 weekend?
14 A. Yes.
15 Q. What is that?
16 A. My mother's graduation from Baker University.
17 Q. Was she graduating the next day?
18 A. Yes.
19 Q. Your mom was in the medical field?
20 A. Yes.
21 Q. Where did you all go for dinner?
22 A. We went to Old Chicago.
23 Q. Where is that located?
24 A. I'm not sure of the address to be clearly honest.
25 Q. What town is it in?

1 A. Oh, Johnson County.
2 Q. Did you go to the theater afterwards?
3 A. Yes.
4 Q. Do you know what theater you guys went to?
5 A. AMC 30.
6 Q. What movie did you see?
7 A. Iron Man 2.
8 Q. Who went to the movie, you and Nick and who else?
9 A. Marcus, Alex Dean, Brad Luchen and my parents and
10 my sister.
11 Q. Did you all go home after the movie?
12 A. Yes.
13 Q. Did you play some video games until when?
14 A. We played video games until approximately three in
15 the morning.
16 Q. And at midnight did some of the boys need to go
17 home?
18 A. Alex Dean and Brad Luchen.
19 Q. How did Alex get home?
20 A. Alex lives across the street, so he walked home,
21 and Brad received a ride from my father.
22 Q. How far away from home does Brad live?
23 A. Roughly, like half a mile.
24 Q. Did your dad take him home on foot or in a car?
25 A. In a car.

1 Q. Did Brad make any complaints to you about anything
2 inappropriate your pop did that evening?

3 MS. RASMUSSEN: Objection. Hearsay.

4 THE COURT: Overruled. He may answer.

5 A. No.

6 Q. (By Mr. Regan) Who remained at the home then to
7 keep playing video games?

8 A. Nick, Marcus and I continued to play video games.

9 Q. What games did you boys play?

10 A. We played *Call to Duty Nazi Zombies*.

11 Q. Whose games were they?

12 A. The game itself belonged to Marcus.

13 Q. What time did you guys quit playing?

14 A. Three o'clock in the morning.

15 Q. Preston, were there other relatives in the family
16 home that night too?

17 A. No.

18 Q. Did you have any other aunts and uncles,
19 grandparents over?

20 A. No.

21 Q. Who was upstairs while you boys were playing
22 downstairs?

23 A. My father and mother were upstairs watching TV
24 while we were downstairs playing video games in the basement.

25 Q. Were they alone, or was your sister there?

1 A. My sister was also present with my parents.
2 Q. Let's talk about that room. What kind of floor
3 does the family room have?
4 A. It sits on a concrete slab.
5 Q. Can you hear footsteps when people walked on it?
6 A. No.
7 Q. Was it your family plan that everybody would spend
8 the night that night?
9 A. Not originally.
10 Q. I don't mean the boys, mom, dad you and sister?
11 A. No.
12 Q. Were there plans to go to the Baker graduation
13 together?
14 A. Yes.
15 Q. Was Marcus and Nick's spending the night a planned
16 event at the beginning of the night?
17 A. No.
18 Q. About what time did you guys get done playing
19 video games?
20 A. Three in the morning.
21 Q. Does your family have a certain rule about what
22 time your mom and dad would like to be quiet?
23 A. Three in the morning.
24 Q. Every family is different, but a three o'clock
25 rule, something like that?

1 A. Yeah.

2 Q. You guys were kind of under orders to be quiet

3 after three?

4 A. Yeah.

5 Q. Did you come upstairs?

6 A. Yes.

7 Q. Who was upstairs?

8 A. My father and mother were both upstairs.

9 Q. What were they doing?

10 A. They were watching TV.

11 Q. And your sister had gone to bed by then?

12 A. Yes.

13 Q. What did you boys do?

14 A. We came up, and we watched TV, and we watched a

15 movie.

16 Q. Do you remember what you watched?

17 A. No, I do not recall specifically.

18 Q. Did there come a time when you guys all fell

19 asleep?

20 A. No, we did not fall asleep.

21 Q. Let me ask you this, how was it that Nick got to

22 spend the night, did someone have to call somebody?

23 A. Yes. Nick requested that my father call his

24 mother to request permission to spend the night.

25 Q. Did you hear the conversation?

1 A. Yes.

2 Q. Did the call begin with Nick?

3 A. Yes.

4 Q. Did he talk to his mom for a little bit?

5 A. Yes.

6 Q. And then your dad talked. Was your dad on the

7 phone with Mrs. Koch a long time or a short period time?

8 A. A short period of time.

9 Q. Was he pleading with her, begging her to let her

10 son spend the night?

11 A. No.

12 Q. What was the nature of the conversation that you

13 could hear?

14 A. It was my father giving permission for Nick to

15 spend the night as the parental authority.

16 Q. Did you hear him do any convincing or conniving to

17 try to get her to let the kid spend the night?

18 A. No.

19 Q. A long conversation or short?

20 A. It was a short conversation.

21 Q. Was it your intention to get up early the next

22 day?

23 A. Yes.

24 Q. How about Marcus, did he have to call home too?

25 A. I believe so.

1 Q. Did your dad talk to his folks?
2 A. I believe so as well.
3 Q. When you came upstairs, were mom and dad awake or
4 asleep in the easy chairs?
5 A. I believe my father was awake, but my mother was
6 asleep.
7 Q. Did you guys wake your mom up so she could go up
8 to bed?
9 A. Yes.
10 Q. Did your father stay downstairs and talk with you
11 and watch TV for a little bit?
12 A. Yes.
13 MR. REGAN: May I approach the witness
14 please, Judge?
15 THE COURT: Yes.
16 Q. (By Mr. Regan) Preston, we have some photos that
17 are in evidence and a diagram that is in evidence. Is this a
18 fair and accurate diagram of the layout of the family room in
19 Defendant's Exhibit 16?
20 A. Yes.
21 Q. Is this where your mom was sitting?
22 A. Yes.
23 Q. And this would be where your father sits?
24 A. Yes.
25 Q. Mom went to bed?